

do so. For purposes of filing an amended pleading, Though the Court does not reach the other grounds for demurrer in light of this ruling, leave to amend includes leave to address any other matters subject to the challenges raised in the demurrer if Plaintiff chooses to do so in addition to alleging additional facts to address the statute of limitations.

For purposes of filing an amended pleading, any amended pleading must be titled as the **Second Amended Complaint** to avoid confusion in the Court's register of action in light of the "first amended complaint" on file. The Court also expects compliance with Code of Civil Procedure section 471.5 which requires service of an amended complaint "upon the defendants affected thereby." (Code Civ. Proc. § 471.5(a).) Based on this ruling, and concurrent rulings sustaining demurrers by the other defendants, any amended complaint must be served on all defendants.

17. 9:00 AM CASE NUMBER: C25-02273
CASE NAME: LINDA WILLIAMS VS. SAN RAMON REGIONAL MEDICAL CENTER
***HEARING ON MOTION IN RE: STRIKE PLTFS 1ST AMENDED COMPLAINT**
FILED BY: TENET HEALTHCARE CORPORATION
TENTATIVE RULING:

Before the Court is a motion to strike portions of the prayer in the first amended complaint by defendant Tenet Healthcare Corporation. Based on the Court's concurrent ruling sustaining Dr. Malani's demurrer, the motion to strike is **DENIED AS MOOT**.

18. 9:00 AM CASE NUMBER: C25-03269
CASE NAME: SAMUEL CHEN VS. ORACLE AMERICA, INC.
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: ORACLE AMERICA, INC.
TENTATIVE RULING:

Defendant Oracle America, Inc. ("Oracle") filed a demurrer to plaintiff's Complaint on December 18, 2025 (the "Demurrer"). The Demurrer was set for hearing on May 11, 2026.

Background

Oracle's Demurrer demurs to the sole cause of action for Breach of Contract pled in the Complaint (the "Complaint") filed by plaintiff Samuel Chen ("Mr. Chen") on November 6, 2025. The Breach of Contract cause of action alleges that "[t]he Plaintiff entered into a contract with the Defendant on May 15, 2025, that required the Defendant to deliver a payment processing application for his small business by September 1, 2025" and, thereafter, breached that alleged contract. See Complaint, Attachment.

Oracle's Demurrer contends that this cause of action fail to state facts sufficient to constitute a cause of action against Oracle "because there is no contractual privity between Plaintiff and Oracle."

The motion is unopposed. Indeed, at the recent Case Management Conference the Court granted leave to amend, as Plaintiff indicated his intention to amend the operative following discussions with

the opposing party. See Order filed March 25, 2026. However, it does not appear that the operative Complaint has been amended.

Analysis

The limited role of the demurrer is to test the legal sufficiency of the allegations in a complaint. *Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading. *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994. A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. *Id.* For purposes of demurrer, all facts pleaded in a complaint are assumed to be true, but the court does not assume the truth of conclusions of law. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967. "Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227. However, leave to amend should not be granted where, in all probability, amendment would be futile. *Vaillette v. Fireman's Fund Ins. Co.* (1993) 18 Cal.App.4th 680, 685.

To establish a claim for breach of contract, a plaintiff must establish: (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damage to Plaintiff. *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.

As noted, the Demurrer is unopposed. From the attachments to the Complaint, as noted by the moving party, the subject agreement references "KoolGyrl Products." The attachment "Estimate" which appears to include the relevant "Agreement" language lists the "Customer" name as KoolGyrl Products:

Customer Name & Bill To Address
KoolGyrl Products
2743 East Ct
Richmond CA 94806
United States

However, the signature block reflects a signature by "Sam Chen," without any clarifying information as to his capacity vis-à-vis KoolGyrl Products:

I AGREE TO THE FEES AND TERMS OF THIS ESTIMATE:

Sam Chen

Print Name

Signed by:

Sam Chen

Signature

36C15CAFFC3440E...

July 7, 2025 | 11:42 PDT

Date

Upon execution, this document is a binding order for the products and services set forth herein.

Given the "I AGREE..." language, the plain signature of Mr. Chen agreeing to the contract terms and lack of allegations regarding the nature of KoolGyrl Products and Mr. Chen's relationship to it, the Court cannot conclude **from the face of the pleading** that the allegations are insufficient to state a cause of action for breach of contract.

For example, the allegations could be construed to plead that Mr. Chen entered into the subject agreement for a product and/or service as a sole proprietor with a DBA of KoolGyrl Products, thereby stating a cause of action for breach of contract.

If Mr. Chen concedes that KoolGyrl Products is a business entity such as a corporation or LLC that entered into the subject agreement, then he can certainly seek to voluntarily amend the Complaint.

Otherwise, Oracle can make a dispositive motion in due course if discovery reveals that KoolGyrl Products is a business entity that entered into the subject agreement.

Disposition

The Court finds and orders as follows:

1. The Demurrer is OVERRULED.
2. Oracle's responsive pleading shall be filed and served within **ten (10) days** of the date of this order. See Rule 3.1320(j) of the California Rules of Court (CRC).
3. Should Mr. Chen voluntarily elect to amend the Complaint, the parties may confer on a date for such amendment and the timing of Oracle's responsive pleading.
4. The Court shall issue the order after hearing.

19. 9:00 AM CASE NUMBER: N25-1906

CASE NAME: JONATHAN DUNCKEL VS. RUSSELL VACARRO

***HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION FOR ATTORNEY FEES**

FILED BY: DUNCKEL, JONATHAN R

TENTATIVE RULING:

Petitioner Jonathan Dunckel ("Petitioner") filed a motion for an award of attorneys' fees and costs on December 17, 2025 ("Motion for Fees and Costs"). The Motion for Fees and Costs was set for hearing on May 11, 2026. No response has been filed by respondent Russel Vacarro ("Respondent").

Background

Petitioner brings this Motion for Fees and Costs after prevailing on a Request for Civil Harassment Restraining Order filed September 25, 2025. After a hearing conducted on December 3, 2025, the Court entered its Civil Harassment Restraining Order against Respondent, the restrained party.

Analysis

The Court may, in its discretion, award court costs and attorneys' fees to the prevailing party in a civil harassment restraining order proceeding. Code Civ. Proc. § 527.6(s) ("**The prevailing party in an action brought pursuant to this section may be awarded court costs and attorney's fees, if any.**") (Emphasis added); *Krug v. Maschmeier* (2009) 172 Cal.App.4th 796, 802 (the decision whether to award attorney fees to a prevailing party in a civil harassment restraining order is "**a matter committed to the discretion of the trial court.**") (Emphasis added) [Construing former Code of Civil Procedure section 527.6(i) which was substantially identical in all pertinent language to the current Code of Civil Procedure section 527.6(s)].

The trial court has broad authority to determine the amount of a reasonable fee. *Holguin v. Dish Network LLC* (2014) 229 Cal.App.4th 1310, 1329. The trial court is under no obligation to award the full extent of fees claimed by the prevailing party and may, for example, reduce a fee award where it finds certain claimed fees were inefficient or duplicative. *Id.* at 1330.

No proof of service has been filed showing service of the motion on Respondent.

Moreover, the caption page of the Motion for Fees and Costs reflects hearing information for "DEPT: